

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1414

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO RAPE; AMENDING SECTION 18-6104, IDAHO CODE, TO REVISE A PROVISION REGARDING THE PUNISHMENT FOR RAPE AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-6104, Idaho Code, be, and the same is hereby amended to read as follows:

18-6104. PUNISHMENT FOR RAPE. Rape is punishable by imprisonment in the state prison ~~not~~ no less than ~~one (1) year~~ five (5) years, and the imprisonment may be extended to life in the discretion of the ~~District Judge~~ district judge, who shall pass sentence.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.